

25NNCV03959 25NNCV03959

County: los-angeles

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Case Number: 25NNCV03959 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 13

Date: June 26, 2026

Case No: 25NNCV03959 Trial Date: August 9, 2027

Case Name: Cable v. Shah, et al.

MOTION FOR TRIAL PREFERENCE

[CCP § 36 subd. (a)]

Moving Party: Plaintiff, Robert G. Cable

Responding Party: Defendant, Swapnil Shah, M.D [Unopposed]

RELIEF REQUESTED:

Order granting trial preference pursuant to CCP section 36 subdivision (a).

CAUSES OF ACTION: from Complaint

1) Professional Negligence

SUMMARY OF FACTS:

Robert G. Cable ("Plaintiff") alleges that on December 5, 2023, Swapnil Shah, M.D ("Defendant") performed a left total hip arthroplasty on Plaintiff. Plaintiff alleges that despite complaining of worsening pain after the procedure, Defendant continued to reassure Plaintiff that the procedure was totally successful and that the pain and delay in recovery was due to Plaintiff's age and pre-existing medical conditions. The Complaint alleges that Plaintiff sought a second opinion from Dr. Nathanael Heckman, who determined that the hip arthroplasty was a failed procedure due to a number of issues including that the prosthesis was an incorrect size, the placement and trajectory of the prosthesis in the femoral shaft was out of alignment, the femoral implant was rotated off axis, and the prior intra-surgical fracture required the placement of surgical wires. Plaintiff underwent a revised total left hip arthroplasty on October 18, 2024, after which Plaintiff alleges he experienced a successful recovery, a dramatic decrease in pain, and significant improvement in his mobility.

Plaintiff alleges that Defendants failed to possess and exercise the degree of knowledge, skill, and care ordinarily possessed and exercised by other physicians and surgeons. Plaintiff further alleges that Defendant negligently and carelessly performed the aforesaid medical procedures leaving Plaintiff's health and well being seriously compromised which has resulted in additional medical care and treatment, continuous therapeutic procedures, ongoing orthopedic evaluation, radiographic studies, physical therapy and assistive devices leading to a drastic compromise in Plaintiff's everyday life.

ANALYSIS:

Relief is sought under CCP section 36 subdivision (a), under which: "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: 1) The party has a substantial interest in the action as a whole. 2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

In addition, "[n]otwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (CCP § 36, subd. (e).)

The motion may be supported by an affidavit by the party's attorney "based upon information and belief" as to the party's "medical diagnosis and prognosis." (CCP § 36.5.)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (CCP § 36, subd. (f).)

Plaintiff is 92 years old, having a date of birth of April 7, 1933. (Wright Decl., ¶ 2.) Plaintiff is the only plaintiff in this action, which involves personal injuries to Plaintiff himself. Accordingly, Plaintiff has a substantial interest in the action as a whole.

With respect to whether plaintiff has established that his health is such that a preference is necessary to prevent prejudicing his interest in the litigation, the statute was amended in 1990 so that advanced age alone is not enough to give rise to preference. A party must now show that "[t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP § 36 subd. (a)(2).)

The decision to grant or deny a preferential trial setting under CCP section 36 "rests at all times in the sound discretion of the trial court in light of the totality of the circumstances." (Salas v. Sears, Roebuck & Co. (1986) 42 Cal.3d 342, 344.)

Plaintiff submits a declaration from counsel which states that Plaintiff's "age is such that it is in the interest of justice to advance the trial to occur approximately 150 days from the date of this hearing." (Wright Decl., ¶ 7.) The motion asserts that although Plaintiff "does not suffer from any life-threatening health issues, he does have significant health issues." (Mot., p.

2:17-18.) Plaintiff does not elaborate on what these health issues entail. Nor does Plaintiff articulate any reason as to why Plaintiff's interests would be prejudiced if preference is not granted. Without a showing that the party's health necessitates preference, the mandatory provision of CCP section 36 subdivision (a) is not triggered. Age alone, without a health-related finding, is insufficient.

Under the circumstances, Plaintiff has failed to make the required showing that his health is such that a preference is necessary to prevent prejudicing his interests in the litigation.

The motion is denied without prejudice to Plaintiff seeking a preferential trial setting in the future if conditions change, and Plaintiff can meet the statutory requirements.

RULING:

Plaintiff Robert G. Cable's Motion for Trial Preference is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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